

Art.226 declined for tubewell bill; statutory correction remedies available

Allahabad High Court · Division Bench · 5 October 2010 · Writ-C No. 60648 of 2010 · **Writ dismissed; relegated to EA 2003 and Supply Code 2005 bill-correction remedies.**

HEADNOTE

A consumer who had not paid tubewell dues for 15 years, alleging an unadjusted 1995 deposit and billing at 15 H.P. instead of 7.5 H.P., could not invoke Article 226. The Division Bench held that the Electricity Act, 2003 and the Electricity Supply Code, 2005 afford remedies to approach the authorities for correcting the bill, and declined interference at that stage.

FACTUAL SUMMARY

The petitioner sought a writ over a tubewell connection for which no electricity bill had been paid for 15 years. He alleged that Rs 17,010.25 deposited on 30 January 1995 had not been adjusted, and that bills were being raised for a 15 H.P. connection though he had only a 7.5 H.P. connection. Counsel were heard; the petition was disposed of on 5 October 2010.

HOLDING-UNITS

INTERPLAY · EA2003::remedies

Art.226 vs statutory bill-correction remedies

HOLDING

Where the Electricity Act, 2003 and the Electricity Supply Code, 2005 afford remedies to approach the authorities for correcting an electricity bill, the High Court will not interfere directly under Article 226 at that stage. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer who had not paid tubewell dues for 15 years, alleging an unadjusted 1995 deposit and billing at 15 H.P. instead of 7.5 H.P., could not invoke Article 226.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 30.1.1995 DEPOSIT OF RS 17,010.25 WAS LIABLE TO BE ADJUSTED AGAINST THE TUBEWELL DUES

¶ 1

NOT DECIDED — WHETHER BILLS WERE WRONGLY RAISED FOR 15 H.P. INSTEAD OF A 7.5 H.P. CONNECTION

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